

Succession rights of women: Time for Uniform Civil Code

Abstract

This paper primarily focuses on the mainstream issues of tribal women in India spread across Assam, Arunachal Pradesh, Mizoram, Meghalaya, Manipur, Nagaland, and Tripura, who have remarkably faced enormous discrimination governing customary laws such as marriage, divorce, and inheritance of property. They conventionally have either minimal rights or no legacy of any property rights. While the women of the tribe manage to give up after their marriage, this emerges as a problem of their economic status in society and also leads to the exploitation of their rights in many ways. This study aims to draw attention to the concerns related to the Uniform Civil Code, which brings all the personal laws of all religions under an umbrella that seeks to protect the minorities of society, such as gender equality and accessibility for minority communities. If this law were to be implemented, then tribal women would have the same rights as men for the inheritance of property, and this law could protect their rights after marriage. Therefore, there is a demand for similar enactment of the Uniform Civil Code for both genders so that women can enjoy equal equality and justice. Regardless of the community to which they belong. However, the idea has yet to be realized by tribal women.

Keywords: Uniform Civil Code, tribal women, personal laws, right to inherit property, India.

Objectives:

1. To study the importance of the UCC for women, especially women from economically weaker sections or tribal women.
2. To study women's rights in owning property and inheritance, especially tribal women.
3. To study the need for the UCC in our Constitution to protect women's rights.

4. To understand the effect of the UCC before and after implementation. 5. To identify the types of barriers to implementing the UCC.

6. To identify the barriers of tribal women to practice their rights.

Introduction

Our country is a land of diverse religions like Christianity, Hinduism, Islam, Buddhism, etc. India is a secular country; it was appended in India's Constitution and Preamble subsequent to the 42nd Amendment in 1976. The appellation 'secular' or 'secularism' means that religion is separated from all the government establishments and organizations and allowed to participate in, but not dominate, the public sphere. Secularism will enable citizens to pursue their faith without hurting or abusing others and to change their religious faith.

Interestingly, the problem arises because personal laws differ and are inconsistent. Hence, uniformity does not exist. Additionally, women are denied their Personal rights on some occasions. By enacting the Uniform Civil Code, India could counteract these societal deficiencies. The UCC is a code that unifies laws that apply to all citizens irrespective of diversity, such as religion and gender. By adopting the UCC, India could replace discriminatory and religious laws.

According to research conducted by Gayatri in 'Women's Property and Inheritance Rights' The UCC, Uniform Civil Code, in the Constitution under Article 44, exemplifies One Nation - One Law; it divulges to secure all the human rights of its citizens regardless of their religion in the states throughout the nation's boundaries. It attests that it can replace all personal laws. (Gayatri, Pg 06) According to the Universal Declaration of Human Rights, Article 1, 1948, "All human beings are born free and equal in dignity and rights. They are endowed in reason and conscience and should act towards one another in a spirit of brotherhood" (Universal Declaration, Article 1).

Property rights are revered under Article 17 of the Universal Declaration of Human Rights. It states, "Everyone has the right to own property alone as well as in association with others, and No one shall be arbitrarily deprived of his property" (Universal Declaration, Article 17). India is a nation of various religions, communities, traditions, races, and genders. Each tribal community in India is obligated by its customary law. India's rich culture and diversity, together with the complexity of the Uniform Civil Code conflicting with private property-based formal law, raise challenging concerns for improving and strengthening women's land and resource rights.

It is the responsibility of the state's government to ensure that the Uniform Civil Code (UCC) is available to its citizens in all parts of the country, as stipulated in the Indian Constitution's Article 44. By way of explanation, it exemplifies "One Nation – One Law", regardless of social background, gender, or religion of a person. According to the UCC, India's influential religious and societal communities must be restored with suitable preparatory measures regulating each citizen's rights. According to a study on the Property Rights of Women in Tamil Nadu held by the Centre for Women Studies, there are two schools of thought: the Sunnite and the Shiite; the customary practice is to follow either of the two laws. According to the Indian Succession Act 1925, Sections 50–56 outline the inheritance laws for Parsis. Traditional customs and regulations continue to govern tribal women of different states and religions for their property and inheritance ownership. Therefore, introducing UCC could bring forth some benefits for Tribal women. It may help them improve their economic status and make them less vulnerable to exploitation. Even so, some tribal communities are concerned that the UCC would breach their traditional and customary laws and may resist its implementation.

Moreover, some tribal women may be reluctant to give up their formal living and may not want to adopt the same property rights as other women in the country. Overall, the impact of the UCC

on the property rights of tribal women is undetermined. There are potential benefits and risks associated with the UCC because there is no consensus on whether it would be beneficial or harmful for tribal women after its proper implementation. The UCC should also be designed to ensure that it does not violate the customary laws of the different tribal communities or force tribal women to adopt a new way of living. It is also essential to involve tribal women in developing and implementing the UCC to ensure that lawmakers and the government hear their voices.

Women's Property Inheritance Law in India:

The Constitution of India is a mixture of socialist, democratic, and secular principles and is contemplated as an upholder of equal rights for both men and women. Moreover, India is considered a secular country of various cultures and religions, whereby their community or customary laws subjugate each community. These laws are twisted in a way to make a woman's situation defenceless and sensitive in her community. Gayathri states, "A range of religion-based family laws governing marriage, separation, inheritance, maintenance, and adoption, which vitally affected the status of all Indian women, even as they were wholly instituted and implemented by men." (Women's Property and Inheritance Rights) Women's status is affected by patriarchal customary laws solely implemented and hegemonized by men.

Property Rights of Tribal Women

Women's property rights are distressed because traditional customary laws still govern them, under which the right to own property is undermined. Tribal women do not even acquire, in general, any gender rights. The right has been disputed to safeguard tribal culture. The traditional definition of property is genuinely separated from movable property, such as jewellery, standard objects, and animals, and immovable property, such as land (Inheritance or personal). In a

conventional tribal family, only men can be natural heirs or successors. Even without male successors, women are not allowed to inherit them. (Critical analysis of Customary laws) The nature of the family and the marriage again determine the property rights of a tribal woman. A woman's property rights in a monogamous family significantly differ from those inherited in a polygamous family. One more, the right to own the property of a widow is different from that of married women whose husband is alive, and the right to own property practiced by women blessed with children is different from that of barren women. (Awareness of tribal women's property rights)

Under the comprehensive doctrine of the Indian Constitution, the Supreme Court has emphasized ensuring that tribal women have the right to ownership and inheritance rights. According to Universal Declaration Article 38, "The state shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, socioeconomic, economic, and political, shall inform all the institutions of national life" (Universal Declaration Article 38). According to Universal Declaration Article 48, "Promotion of educational and economic interests of Scheduled Castes, Schedule Tribes, and weaker sections. The state shall promote with special care the educational and economic interests of the weaker sections of the people, the scheduled castes and the Scheduled Tribes, and shall protect them from social injustice and all forms of exploitation" (Universal Declaration Article 48).

The Interference of State with Community

The Code has been amended now and then, but it never failed to recognize women's equal right to inheritance of property or agricultural land at par with men. The states of India have apprehended equal rights of a Hindu woman to have a succession of land by omission of will. According to Sircar and Paul, "Our research showed that the land administrator's process of determining legal

heirs, irrespective of their context, is now included in the land records and the village register."

Do tribal women have inheritance rights? A study of women's land rights "The contrast is with women, who know much less about changes that benefit them. It is because land officials continue to interface only with the sons or brothers of the late husband of the woman concerned; on a positive note, however, land officials do talk to widows in a good number of cases when they are collecting the names of the legal heirs." 5 (Do tribal women have land rights? A study of women's land rights), but because women are unaware of their land and inheritance rights, that may benefit them. Land officials still associate with the male members of the family. However, Landowners are considerate of widows when they collect the names of the subsequent legal heirs. According to Sircar and Paul, "The stakeholders, on being asked specifically what norms the state followed with tribal women and men when they dealt with property rights in connection with inheritance and partition, said that Patwaris and Tehsildars uniformly follow the HSA and Code, and do not, in normal circumstances, recognize traditional customs and social norms of the tribal. Tribal society knows this well and does not expect state officials to follow their societal norms. In cases where tribal families seek mutation, they accept state rules. However, one reason tribal families are reluctant to divide mutated land is that they have to agree to give a share of the land to their sisters because the sisters' names are typically included in land records after the parent owning the land dies." 5 According to Sircar and Paul, "In case the sisters are willing to forfeit their rights to their share of land in favor of their brothers, the law requires that the sisters sign a Haq-Tyag-Nama (Rights forfeiting affidavit) and register that document by paying 4% stamp duty. It works as a disincentive for partitioning the land; therefore, brothers are often found to be in possession of far more land than they have the documents for. Widows do not have land partitioned for this reason" (Women's Property and Inheritance Rights, A Study of Women's Land

Rights). When a woman wishes to forfeit her right to own the land or inherit the property, she must sign a Haq-tag-nama, which officially forfeits her right. As a result, male family members often end up possessing more than they have the documents for.

Property Rights of Tribal Women under the Uniform Civil Code (UCC).

Under British colonial rule, India saw disagreements about the Uniform Civil Code (UCC).

Hence, it originated when the British government turned in their report to have a uniform classification of pre-independence Indian laws, making it fluent in providing justice equally for all. Before the Uniform Civil Code was introduced, tribal women faced challenges regarding their rights. They were often forbidden from exercising their personal rights, such as the right to own property or inheritance, marriage, divorce, or adoption. All because each tribe had its own customary laws, which tribal women adhered to follow unthinkingly, without questioning them. Raja Ram Mohan Roy provided women with property rights and education for the first time. "All ancient lawmakers gave the woman, as the person's mother, the same amount of property as her son."

"Although the British did not outright prohibit or meddle with India's religious practices, they did impose restrictions on intimate connections inside families. These reforms included the Remarriage Act of 1856, the Child Marriage Restrictions Act of 1929, and the Bengal Sati Control Act of 1829. In 1850, the British government of India first outlawed the Hindu law of succession. It was accomplished by an act of federal legislation enacted in 1850 called the Caste Disabilities Removal Act" (Tribal Customary Law). The UCC has the power to reform the status of Indian women in India; women were often denied the right to practice their rights to own property, inheritance, marriage or divorce, and adoption, all because of the customary laws of each tribal community, which are discriminatory towards women. As a result of discrimination,

the tribal women were economically weaker than the male population; they were reasonably disadvantaged. They were forced to give up their right to own or inherit property upon marriage, this disadvantage made the tribal women vulnerable to exploitation, and they were, in some cases, unable to support their families and themselves.

Efforts to Introduce UCC in India

After introducing UCC law in India, women gained access to economic security and freedom during the 19th century. "The Hindu law of inheritance was very harmful to women regarding their legal claim to property ownership. Women are completely at the mercy of their male relatives, including their husbands, fathers, brothers, and sons (Tribal customary law, the UCC law). The Indian Succession Act of 1865 was purely passed for married Indian women to protect the rights to inherit property and to ensure that they would not disinherit or be prevented from having a right to do anything with the inherited property they would do if they were unmarried. "The Women's Act of 1874 was changed in 1923 to cover Hindu and other women. People thought 1923 was a big year because it was the first time Hindu women were given the right to own property. The Widow Remarriage Act of 1856 said a childless widow could get a share of her husband's property. The right used to be limited, so this was seen as the first and most important step towards giving women more economic rights" (Tribal customary law, the UCC law). The UCC has the potential to refine the rights of Tribal Women in India. It guarantees to protect women's rights irrespective of religion, caste, or culture. It would mean the UCC would safeguard the equal rights of women to inherit property as men do, and women would not need to sacrifice their right to inherit property rights upon marriage. Article 14 of the Indian Constitution says, "It is against the law to treat people differently because of their religion, race, caste, sex, place of birth, or any of those things. The state cannot treat citizens differently because of their

religion, race, caste, gender, place of birth, or any of those things. Nothing in article 14 or clause 2 of article 29 prevents the state from making special plans to help Schedule Castes and Scheduled Tribes or any other group of citizens who are socially or educationally backward" (Tribal customary law, the UCC law). "So, first of all, women are one of the groups that have been found to be at risk of prejudice and are therefore explicitly protected from discrimination. Second, and this is a step. Further, women are also entitled to special protection or rights through laws, if needed, to compensate for the disadvantages they have faced because of their sex alone." (Tribal customary law, UCC law).

"Special Marriage Act 1954, SMA, provides an alternate route to religious laws for marriage for Interfaith couples." (Special Marriage Act, 1954) This Act allows Indian citizens to marry regardless of religion, whether interfaith or not. Under this Act, a citizen can get married outside of religious practices. The law explicitly protects women from discrimination, and they can make up for any past misfortunes they have suffered due to sex-based discrimination. The UCC might also send a potent message that the Constitution and government are ready and committed to providing tribal women with the same rights as men. The UCC might as well help make people aware of gender discrimination and prove that the government is taking the initiative. It would encourage tribal women from different communities to adopt more women's rights and progressive views. (The UCC) A short while ago, the Union Cabinet consented to the Constitution of the '22nd Law Commission in India' for three years. It has unambiguously decided to strive for the public's opinions and recommendations and has acknowledged religious organizations concerning the UCC in India.

Conclusion

There are still barriers to providing women with the same inheritance and property rights as men. The goal of the UCC is to remove the obstacles and make laws favouring women of all castes and cultures. Women in India are battling for the UCC (Uniform Civil Code), which is in line with the Constitution. The UCC is potentially significant in bringing essential changes in the lives of the tribal women, who are struggling to acquire equal rights as men and break through the customary laws of their tribes, which are inherently patriarchal. However, it is crucial to understand that the enactment of the UCC is the only Code that can bring change and evolution to the tribal women's lives and rights, as well as other factors, such as their economic development and education. The UCC is a debatable issue in India, especially for tribal women who are not ready to forsake their tribal norms and laws and believe in traditional gender-specific roles. In contrast, other tribal women want to acquire their rights to own and inherit property as men. Moreover, no consensus is determining whether the UCC harms or benefits the tribal community. The government needs to consider all the loopholes in the Code and understand the concerns of the tribal community before implementing it. Moreover, if the UCC is enacted, it would increase the chances of mass public riots in India; the codification of personal laws would not cover each aspect of these laws, which could lead to more problems in the nation than now. Most of the Indian population is unlikely to accept the codified ordinances if the country has diverse cultures and communities, and the codified laws would lose their purpose if the vast majority were unwilling to accept such laws. Bringing vital changes to the UCC and reforming the personal laws requires more evolution of the current institution. So codified ordinances of the states do not infringe on minority communities' traditional and customary laws, which they are unwilling to sacrifice to achieve equality as men. It is necessary to respect the personal and customary laws of each minority community. Although

the UCC could give women the same rights as men, it is essential to recognize and appreciate that minorities may not be ready to give up their traditional roles and laws. In order to maintain harmony in a diverse nation like India, it is necessary to accept and embrace the differences and regulations of other minority communities. However, the significant benefit of the UCC would be eliminating discrimination based on religion. The UCC law can also prevent the fundamental rights of women, such as the right to inherit property; UCC will promote national secularism and unification, creating a conventional or common identity for all citizens by eliminating all the inconsistencies. It could harbour a sense of integrity and harmony between disparate communities. For Example, the UCC would allow interfaith marriages without restrictions or religious or social orthodoxies.

UCC would secure gender equality nationwide by nullifying discriminatory and unjust practices that oppress women. The UCC would streamline the constitutional framework by accumulating and gathering numerous laws into an individual code. Multiple countries across the globe, such as Egypt and America, have already implemented the UCC. The laws determining women's rights in intimate matters like marriage, inheritance, adoption, and divorce are intrinsically defined by communities' customary laws.

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